



RE: Request for Intervention on Procedural and Human Rights Concerns

4 messages

Lwethu Yoli <LYoli@sahrc.org.za>
To: info@ethichawks.co.za <info@ethichawks.co.za>

Tue, 10 Feb 2026 at 09:45

Dear Mr Matthee,

Thank you for your correspondence and for submitting your documentation to the South African Human Rights Commission("Commission").

The Commission has considered the nature of the issues raised in your submission. While the Commission is mandated to promote, protect, and monitor the observance of human rights, certain aspects of your complaint relate to alleged victimization, discrimination, and occupational detriment arising within an employment relationship.

In terms of existing legal frameworks:

1. Allegations relating to unfair labour practices and discrimination in the workplace are generally adjudicated by the CCMA and/or the Labour Court; and
2. Complaints specifically concerning protected disclosures and alleged reprisals may be pursued with the Public Protector in terms of the Protection of Disclosures Act.

Accordingly, the Commission is not best placed to provide direct intervention in respect of those aspects of the matter.

This does not diminish the seriousness of the concerns you have raised, nor the personal impact described in your correspondence. Should you wish to pursue the matter further, you are encouraged to approach the above institutions, which have the necessary remedial powers.

Thank you for engaging the Commission and wish you well in pursuing the appropriate avenues available to you.

Kind regards,

Lwethu Yoli

Western Cape PO

Legal Officer
Accredited Mediator



Together, respecting and realising human rights.

Follow the SAHRC:     

From: Wilbur William Matthee <info@ethichawks.co.za>

Sent: Tuesday, December 23, 2025 1:48 PM

To: Busisiwe Dlamini <bdlamini@sahrc.org.za>

Subject: Request for Intervention on Procedural and Human Rights Concerns

Dear South African Human Rights Commission,

I am writing to formally bring to your attention serious concerns regarding systemic governance failures and procedural obstruction within Afrocentric Health.

Find attached my full evidence dossier, compiled between 7–22 December 2025, which documents these risks in detail. The scale of this dossier reflects both the seriousness of the issues and the extraordinary psychological strain endured during its preparation.

I must also notify the Commission that I am experiencing a **humanitarian crisis** as a direct result of these circumstances. The combination of procedural obstruction, exhaustion, and the emotional toll of whistleblowing has placed me in a position of acute vulnerability.

I respectfully request that the SAHRC:

- Review the attached dossier and assess whether rights have been compromised.
- Provide guidance or intervention to ensure trauma-informed governance and corrective action.
- Recognize the ethical and psychological dimensions of whistleblowing as integral to systemic reform.
- Consider my humanitarian crisis as part of the urgency of this matter.

I am available to provide further documentation or testimony as required.

Thank you for your attention to this matter.

Sincerely,

Wilbur William Matthee
RN, BCur (HMN), PG Dip HSM (NQF 8)

Dear Lwethu Yoli,

Thank you for your correspondence regarding my submission. I appreciate the Commission's formal recognition of the "seriousness of the concerns" and the "personal impact" of the victimization I have described.

While I acknowledge your referral to the CCMA and the Public Protector regarding the employment aspects of my case, I would like to provide an update that reinforces the human rights dimension of this matter.

The Council for Medical Schemes (CMS) has officially responded to my report regarding the "System Integration Gap" I identified. They have formally referred the matter to the HPCSA and SANC for investigation into "Administrative Misconduct and Ethical Failure." This confirms that my disclosures involved a verifiable risk to public health and patient safety, which was met with institutional retaliation.

As noted in my initial submission, the retaliation against me included a 40.47% salary deduction (unlawful in terms of BCEA Section 34) and the deliberate inducement of destitution during a documented psychiatric crisis. I believe these actions fall under the Commission's mandate to monitor the observance of human rights, as they constitute a direct assault on the right to dignity, housing, and administrative justice.

I will be following your guidance by updating my filings with the Labour Court and approaching the Public Protector regarding the protection of disclosures. I request that the Commission keeps my file on record as a reference point for the systemic victimization of whistleblowers within the South African healthcare sector.

I thank the Commission for its time and for validating the gravity of this situation.

Sincerely,

Wilbur William Matthee

[Quoted text hidden]



image002.png
177 KB

Lwethu Yoli <LYoli@sahrc.org.za>
To: Wilbur William Matthee <info@ethichawks.co.za>

Tue, 10 Feb 2026 at 11:56

Dear Mr Matthee,

Thank you for your further correspondence.

With specific regard to the financial aspects you raise, including allegations relating to salary deductions and associated financial prejudice, the Commission notes that these matters fall within the statutory mandate of the Department of Employment and Labour, as well as the labour dispute resolution framework established under labour legislation.

The Department of Employment and Labour, together with the CCMA and the Labour Court, are institutions specifically created to protect and enforce the rights implicated in such matters, including rights relating to fair labour practices, remuneration, and compliance with the Basic Conditions of Employment Act. These bodies are accordingly best placed to investigate, determine compliance, and provide effective remedies in relation to the financial issues raised.

The Commission's referral is therefore not a dismissal of the seriousness of the allegations, but is based on the principle that matters should be dealt with by the institutions vested with the appropriate legal powers and remedial authority to address the rights affected.

You are encouraged to pursue the financial aspects of your complaint with the Department of Employment and Labour and the relevant labour institutions, which are empowered to investigate and take action where contraventions are established.

[Quoted text hidden]

Wilbur William Matthee <info@ethichawks.co.za>

Tue, 10 Feb 2026 at 12:44

To: Lwethu Yoli <LYoli@sahrc.org.za>

Dear Mr/Mrs Lwethu Yoli

I hereby acknowledge receipt of your correspondence dated 10 February 2026.

I thank the Commission for its guidance in ensuring these human rights violations are addressed by the institutions vested with the appropriate remedial authority.

I request that this matter remains on your records as a secondary reference should further systemic human rights breaches arise during the labor litigation process.

Thank you for your assistance.

Sincerely,

Wilbur William Matthee
RN, BTech, PG Dip HSM (NQF 8)

[Quoted text hidden]



image002.png

179 KB